

Opinion of KENNEDY, J.

tive technique” and later to determine whether there was a basis to “plac[e] [a suspect] under arrest”). In those circumstances, we found an insufficient link to the judicial process to warrant absolute immunity. But the situation here is quite different. For the reasons already explained, subjecting a prosecutor’s pretrial or preindictment witness consultation and preparation to damages actions would frustrate and impede the judicial process, the result *Imbler* is designed to avoid.

II

The Court reaches a contrary conclusion on the issue of the footprint evidence by superimposing a bright-line standard onto the functional approach that has guided our past decisions. According to the Court, “[a] prosecutor neither is, nor should consider himself to be, an advocate before he has probable cause to have anyone arrested.” *Ante*, at 274. To allow otherwise, the Court tells us, would create an anomalous situation whereby prosecutors are granted only qualified immunity when offering legal advice to the police regarding an unarrested suspect, see *Burns, supra*, at 492–496, but are endowed with absolute immunity when conducting their own legal work regarding an unarrested suspect. *Ante*, at 275–276.

I suggest that it is the Court’s probable-cause demarcation between when conduct can be considered absolutely immune advocacy and when it cannot that creates the true anomaly in this case. We were quite clear in *Imbler* that if absolute immunity for prosecutors meant anything, it meant that prosecutors were not subject to suit for malicious prosecution. 424 U.S., at 421–422, 424, 428. See also *Burns, supra*, at 493 (“[T]he common-law immunity from malicious prosecution . . . formed the basis for the decision in *Imbler*”). Yet the central component of a malicious prosecution claim is that the prosecutor in question acted maliciously and *without probable cause*. See *Wyatt v. Cole*, 504 U.S. 158, 165 (1992); *id.*, at 170 (KENNEDY, J., concurring); *id.*, at 177